

25VECV06273 25VECV06273

County: los-angeles

Division: Civil Law and Motion

Department: I

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Case Number: 25VECV06273 Hearing Date: August 10, 2026 Dept: I

25VECV06273 ENEKA

FRANKLIN-CUMMINGS vs BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY, et al.

August 10, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel
and Sanctions

I.

Background

On October

31, 2025, Plaintiff Eneka Franklin-Cummings ("Plaintiff") filed a complaint against BMW of North America, LLC ("BMW"), Sherman Oaks-B, Inc. dba BMW of Sherman Oaks ("BMW Sherman Oaks"), and Does 1 to 10 alleging four causes of action: (1) breach of express warranty under the Song-Beverly Consumer Warranty Act; (2) breach of implied warranty under the Song-Beverly Consumer Warranty Act; (3) violation of the Song-Beverly Act Section 1793.2; and (4) negligent repair.

On June

24, 2026, BMW filed the instant motion to compel the deposition of Plaintiff. BMW also requests sanctions.

On July

28, 2026, Plaintiff filed her opposition.

On July

30, 2026, BMW filed its reply.

II. Legal Standard

CCP § 2025.450 provides in pertinent
part:

“(a) If, after service of a deposition
notice, a party to the action or an officer, director,

managing agent, or employee of a party,
or a person designated by an organization that is a party under Section
2025.410, fails to appear for examination, or to proceed with it, or to produce
for inspection any document, electronically stored information, or tangible
thing described in the deposition notice, the party giving the notice may move
for an order compelling the deponent’s attendance and testimony, and the
production for inspection of any document, electronically stored information,
or tangible described in the deposition notice.

(b) A motion under subdivision (a) shall
comply with both of the following:

(1) The motion shall set forth specific
facts showing good cause justifying the production for inspection of any
document, electronically stored information, or tangible thing described in the
deposition notice.

(2) The motion shall be accompanied by a
meet and confer declaration under Section 2016.040 or, when the deponent fails
to attend the deposition and produce the documents, electronically stored
information, or things described in the deposition notice, by a declaration
stating that the petitioner has contacted the deponent to inquire about the
nonappearance.”

III. Discussion

On December 11, 2025, BMW served its notice of deposition on Plaintiff scheduled for January 26, 2026. (Moore Decl. ¶ 4; Exh. A [notice].) On January 19, 2026, Plaintiff served objections stating that Plaintiff was unavailable but did not provide alternative dates for deposition. (Ibid.) BMW subsequently attempted to meet and confer with Plaintiff's counsel. (Id. at ¶ 5; Exh. B [meet and confer correspondences].) As of the date of this motion, Plaintiff failed to respond to BMW's meet and confer efforts or provide alternative dates for deposition. (Id. at ¶ 6.)

In opposition, Plaintiff argues that, on July 7, 2026, Plaintiff's counsel sent an email to opposing counsel with alternative dates of August 21, 25, and 28, 2026. (Opposition at 2:21-24; Exh. 2 [correspondence].) Notably, these dates were only provided after the initial motion was filed.

In reply, BMW argues that sanctions are still warranted since Plaintiff only provided alternative dates after this motion was filed. (Reply at 5:24-6:9.) The Court agrees.

BMW requests \$1,600.00 in sanctions, representing four hours of work at an hourly rate of \$400.00. (Moore Decl. at ¶ 8.) The Court finds the hourly rate and this amount reasonable.

IV. Conclusion

Based on the foregoing, BMW's motion is GRANTED. Plaintiff is to appear for deposition within 20 days of this order. Additionally, Plaintiff and Plaintiff's counsel, jointly and severally, are to pay defense counsel sanctions in the amount of \$1,600.00 within 30 days of this order.

Moving party to give notice.